

AUTORITEIT

PERSONAL DATA

The Secretary of State for Digitalization and Kingdom Relations

P.O. Box 20011

2500 EA THE HAGUE

Date

June 28, 2022

Subject

Our reference

22022-02282

Authority for Personal Data

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Your letter dated

March 31, 2022

Your reference

2022-0000156415

Advice on draft decision amending the decision on the processing of personal data in general digital infrastructure

in relation to the authority declaration service and authority module

Dear Ms. Van Huffelen,

In a letter dated March 31, 2022, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft decision amending the Decision on General Digital Infrastructure concerning the establishment of rules regarding the authority declaration service and authority module.¹ An amended draft was sent by email on May 17, 2022 (hereinafter: draft).

The AP has the following comments on the draft and advises that these be taken into account.

Scope of the draft

According to Article X, first paragraph, of the Law on Electronic Communication Tax Authority, the minister is responsible for the establishment, availability, maintenance, operation, security, and reliability of facilities for electronic communication and information provision, as well as for facilities for electronic authentication and electronic registration of authorizations.

This basis is used to regulate the processing of personal data in two new facilities, namely the authority declaration service and the authority module.

These facilities enable legal representatives, such as administrators, curators, and persons with parental authority, to conduct business digitally on behalf of another person who is not permitted to do so themselves. To establish that there is an authority to act on behalf of another, personal data must be processed. This is further elaborated in the draft.

An adjustment is also made as a result of a recent court ruling by the Central Appeals Tribunal regarding the sending of government messages via the Message Box of MijnOverheid.

Advice

Message notification Message Box

On September 9, 2021, the Central Appeals Tribunal (CRvB) ruled in an objection procedure regarding the meaning of email notifications sent for messages in the Message Box of MijnOverheid. It was determined that administrative bodies must ensure that the email notification is sent in accordance with the notification preferences specified by the addressee. In this case, the decision was only sent to the Message Box of MijnOverheid. The question of whether an email notification was sent plays an important role. It is currently not the case that a citizen who opts for digital communication automatically receives an email notification. The citizen must check a box for this. In such a situation, the administrative body must verify whether the citizen indeed wanted to receive it. According to the explanation, in order to continue to facilitate the use of the Message Box by administrative bodies

under these conditions, it is desirable that administrative bodies can check whether a recipient has set up to receive a notification when a message is placed in the Message Box and whether a sent notification has been received. Until the moment this decision comes into effect, there was no provision for providing administrative bodies with this data from MijnOverheid regarding the notification settings and whether or not a notification was successfully received. This amendment decision provides a basis for those provisions, according to the explanation.² The AP has two comments on this:

a. Necessity of the proposed regulation for the provision of notification data

The GDPR requires that any processing of personal data is 'necessary' for a specific and legitimate purpose.³ However, the explanation of the draft refers to 'desirable', which is not yet a necessity. In this regard, the AP points to Article 2.10 of the Law on Modernization of Electronic Administrative Communication.⁴ It states that the administrative body must send a notification within 48 hours that a message has been placed in the Message Box, unless the addressee has indicated that they do not wish to receive this. Not

² This part does not only concern representation but all cases of the use of MijnOverheid in a Message Box.

³ Article 5, first paragraph, part b, GDPR.

⁴ Amendment of the General Administrative Law Act in connection with the revision of Section 2.3 of that Act (Law on Modernization of Electronic Administrative Communication (Parliamentary Documents 12021/22, 35 261, A). The bill is under consideration in the Senate.

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The citizen must be informed that a message has been placed in their Message Box. The notification must also provide information about the nature and legal consequences of the decision and a response period must be given. The reason for the introduction of this requirement is that most people do not have frequent contact with the government such that it is obvious they would check their electronic mailboxes as often as their physical mailbox at home or their private email box. The purpose of the notification obligation is to prevent delays due to not consulting a message in a timely manner.

⁵ In the proposal for the law modernizing electronic administrative communication, there is also a provision for the possibility of not receiving notifications. However, a request to not receive notifications must be made explicitly.

⁶ Furthermore, the explanatory memorandum accompanying the proposed draft states that based on the already applicable text (Article 8, part a), personal data may be provided regarding whether or not the message to which the notification relates has been received and the relevant message preferences.

⁷ It is not clearly justified why the currently proposed provision is necessary in that context. The AP advises, in light of the above, to address the necessity of the proposed provision in the explanatory memorandum in relation to Articles 2.10 and 2.11 of the proposal for the Law on the Modernization of Electronic Messaging, which includes a notification obligation as a general rule, and the applicable Article 8 of the Decision on the Processing of Personal Data General Digital Infrastructure.

b. Implementation of the verification obligation

A fundamental aspect of the aforementioned ruling by the CRvB is that the principle of care and the importance of access to the courts require that an administrative body ensures that the notification from the person concerned, who has indicated they do not wish to receive an email notification when a message is placed in their message box, corresponds with their intention.

8 It is not obvious that a

5 Parliamentary documents 112018/19, 35 261, no. 3, p. 21.

6 This is essentially a consent from the citizen for the limitation of data provision regarding notifications based on the legal general rule of provision.

7 Explanatory memorandum, section 4.3. See also the explanatory memorandum for the current Decision on the Processing of Personal Data General Digital Infrastructure (State Gazette 2016, 195, p. 21): "Recipients who have not designated the Message Box as a mandatory channel check, prior to placing a message in a Message Box using the BSN for the message to be sent, whether the relevant Message Box exists and whether the relevant user has their message preference set to 'on' with this recipient. This information is first confirmed (provided) to the recipient. After placing - mostly - a large number of messages, the sending recipient receives a delivery confirmation in MijnOverheid, or the failure thereof, mentioning the relevant BSNs. For recipients who have designated the Message Box as a mandatory channel (currently only the Tax Authority), the 'message preference' has lost its significance. It is always set to 'on'. However, just like with other recipients, the existence of the Message Boxes to which must be delivered and then the actual delivery of messages, or the failure thereof, is confirmed mentioning the relevant BSNs. To enable that recipient to adequately monitor the implementation of the use of MijnOverheid as a mandatory channel and to effectively carry out the associated communication campaign, it is confirmed (or denied) at their request that a user has utilized/personalized their account."

8 Consideration 4.4.6: "The principle of care mentioned in 4.4.4 and the importance of access to the courts imply that, in situations where an interested party indicates that they are electronically reachable for the government without having checked the option to receive an email whenever a message is placed in the Message Box, the administrative body checks whether this is indeed the intention of the interested party. This is, after all, subject to reasonable doubt. As follows from the reports of the AUTO RITE IT

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Citizens are required to check their message box weekly for new messages, and failing to respond in a timely manner to government communications can have significant consequences. This point - whether the checked refusal of the addressee to receive a notification is correct - is not reflected in the draft or the explanation.

In light of the principle of accuracy from the GDPR, which requires that all reasonable measures are taken to ensure that personal data is accurate, the AP advises that the explanatory memorandum should address the implementation of the verification obligation, or, to the extent necessary in light of the upcoming regulation in the Bill for the modernization of electronic administrative communication, further regulate this.

Health Data

The draft provides for the processing of health data. The AP has two comments on this:

a. Necessity of health data for the intended representative

The purpose of the authorization declaration service is to issue a declaration to public service providers regarding the authority of a natural person to act on behalf of another. This declaration is prepared based on information from the available government source. With the authorization declaration, the service provider can then decide to grant access to its services to a person logging in on behalf of another.

Article 3a of the draft specifies which personal data is processed by the minister for the establishment, availability, maintenance, operation, security, and reliability of the authorization declaration service. Regarding the intended representative for whom an authorization declaration is requested, this

includes "other data concerning the type and time, characteristics of the use, including health data where possible in encrypted form."

Ombudsman and the bill mentioned in 4.4.3, it is not obvious, and it has never been obvious since the introduction of electronic communication between government and citizen, that a citizen checks weekly whether a message has been received from the government. Without notification, this should indeed happen, because the government does not only communicate in response to a request from a citizen but can also take significant - often burdensome - decisions on its own initiative and place them in the Message Box.

Consideration 4.4.7: The control mentioned in 4.4.6 can easily take place, for example, by means of a letter, possibly preceded by a phone call, in which the administrative body informs the citizen once about the consequences of their notification and asks the citizen whether the notification corresponds to their intention.

9 Article 5, first paragraph, part d, GDPR.

10 See the first amendment note to the proposal for the Electronic Messaging Act (Parliamentary Papers II, 2019/20, 35 261, no. a, appendix 3).

11 The authorization declaration service is defined in Article 1 as: the facility managed by Our Minister that issues an authorization declaration to users of the authorization declaration service regarding the representation authority of an intended representative.

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The AP is unclear about which health data of the intended representative will be involved and why it is necessary to process health data of the intended representative. Health data are special personal data for which, according to Article 9 of the GDPR, a processing prohibition generally applies, unless one of the exceptions is met, each with different conditions.

The AP advises, particularly in light of the special protection of health data under the GDPR, to remove the processing of health data or to specify in the explanatory memorandum which health data of the intended representative will generally be involved and to substantiate why the processing of such data is necessary. The AP also advises to clarify which exception in the sense of Article 9 GDPR applies, as well as to explain how the conditions set for that exception have been met.

b. Informing the child about the review of the medical file of the representative

According to the explanation, the name of the service and the name of the public service provider that the intended representative wishes to use are processed to determine whether the intended representative, after the establishment of parental authority, can be granted access on behalf of the intended represented: "This is, for example, important in the case of access to medical files, for which children from the age of 6 have the same rights as adults."

The concept thus implies that a representative, after the establishment of parental authority, can digitally view the medical file of the child (under 16 years). Given the additional protection of children and health data in the GDPR, the AP considers it appropriate to ensure that the child is informed about the fact that the representative has accessed the child's medical file, for example, by, if possible, a logging message. The AP advises to address this.

Legal basis for processing

The delegation basis for data processing is Article X of the Electronic Communication Act of the Tax Authority. Thus, the processing is, according to the explanation, lawful based on the legal basis mentioned in Article 6, paragraph 1, under e, of the GDPR (processing necessary for the performance

of a task carried out in the public interest), Article 6, paragraph 1, under c GDPR (processing necessary to comply with a legal obligation) in conjunction with Article 6, paragraph 3, under b (the intended legal basis must be established by national law applicable to the data controller).

It is notable that the explanatory memorandum does not specify which legal basis is precisely applicable (fulfilling a legal task or legal obligation). This is significant as there are substantial differences in conditions and consequences for the different legal bases. The basis of a legal obligation implies that the data subject cannot object. The fact that this concerns the minister processing data for the implementation of the draft decision indicates, in the opinion of the AP, the execution of a legal task.

The AP advises, in light of the above, to further elaborate on the legal basis of performing a legal task in the explanatory memorandum.

Disclosure

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the draft is public. The AP would like to know the expected time of disclosure as soon as this is known.

Sincerely,
Autoriteit Persoonsgegevens,
Aleid Wolfsen
Chairman